

Tourism Act, 1978

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 14

Tourism Act, 2035

Royal Seal and Date of Publication

2035.7.8.4

Amending Acts

1. Tourism (First Amendment) Act, 2042 2042.07.14
2. Administration of Justice Act, 2048 2048.02.16
3. Tourism (Second Amendment) Act, 2043* 2043.10.23

Ratification and Publication Date

4. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.) 2066.10.07
5. Some Nepal Acts Amendment Act, 2072 2072.11.13
6. Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075 2075.11.19
7. Some Nepal Acts Amendment Act, 2082 2082.04.14

Act No. 27 of the year 2035

(Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.)

An Act Made to Make Provisions Relating to Tourism

Preamble: Whereas, it is desirable to make necessary provisions for the health, convenience and interest of tourists coming to Nepal (Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.) and (Added by the Second Amendment.) of Nepali tourists traveling from one place to another within Nepal (Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.) for the purpose of developing tourism and safeguarding the economic interest of the general public,

Therefore, His Majesty King Birendra Bir Bikram Shah Dev has enacted this Act on the advice and with the consent of the National Panchayat. Chapter - 1

Preliminary

1. Short Title, Extent and Commencement: (1) This Act may be called the "Tourism Act, 2035".
(2) This Act shall extend throughout Nepal (Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.).
(3) Chapter 4 of this Act shall come into force on such date as the Government of Nepal may, by notification in the Nepal Gazette, appoint, and the remaining Chapters shall come into force immediately. (Chapter 4 of this Act was appointed to come into force immediately by a notification published in the Nepal Gazette dated 2036.7.26.)

2.

Definitions: Unless the subject or context otherwise requires, in this Act, -

(Amended by the Second Amendment.)

(a) "Tourist" means a non-Nepali citizen coming to Nepal (Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.) from a foreign country for the purpose of sightseeing.

(Added by the Second Amendment.)

(a1) "Nepali tourist" means a Nepali citizen traveling from one place to another within Nepal (Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.).

(Amended by the First Amendment.)

(b) "Travel Agency" means a person, firm or company which, irrespective of the name under which it is operated, makes arrangements, for a fee, for sightseeing, accommodation and for places where modern means of transport are available on behalf of tourists or other persons.

(Amended by the First Amendment.)

(c) "Trekking Agency" means a person, firm or company which, irrespective of the name under which it is operated, makes arrangements, for a fee, for traveling to places where modern means of transport are generally not available, with the objective of showing various natural and cultural sights to tourists or other persons.

(d) "Mountaineering" means the act of a team climbing a specific peak of the Nepalese Himalayan range with the objective of reaching that peak.

(e) "Base Camp" means the camp located at the lowest altitude, reachable without specific mountaineering techniques, which is established to store goods, food supplies, medicines, etc. used for climbing the relevant mountain, to supply such goods to the advance camp, or to give directions regarding mountaineering.

(f) "Liaison Officer" means a liaison officer appointed by the Government of Nepal pursuant to Section 20 to accompany a mountaineering expedition.

(g) "Sirdar" means a leader who arranges local workers, acts as a mountain guide, and controls workers going to high altitude or workers working at the base camp.

(h) "Mountain Guide" means a person who goes above the base camp to assist or help mountaineers in climbing activities.

(Amended by the First Amendment.)

(i) "High Altitude Worker" means a worker who carries necessary goods and materials to and from areas above the base camp.

(j) "Local Worker" means a porter who carries the mountaineering team's equipment to and from the base camp.

(k) "Base Camp Worker" means a person who cooks for the mountaineering team at the base camp, acts as a mail runner, or performs other similar tasks.

(l) "Mountaineering Association" means a mountaineering association registered pursuant to the prevailing law and recognized by the Government of Nepal pursuant to Section 37 for the purpose of mountaineering.

(m) "Guide" means a person who, for remuneration, accompanies a tourist and (Removed by the First Amendment.) works as a guide, and who is licensed pursuant to Section 39.

(Removed by the Second Amendment.)

(n)

(o) "Prescribed" or "as prescribed" means prescribed or as prescribed by this Act or the Rules framed under this Act.

Chapter - 2

Provisions Relating to Travel and Trekking Agencies

3. License Required to Operate a Travel or Trekking Agency: (1) A person wishing to operate a travel or trekking agency must obtain a license under this Act.

(2) A person wishing to obtain a license for a travel or trekking agency shall submit an application to the Government of Nepal (Amended by the Second Amendment.) with details as prescribed.

(3) Upon receipt of an application under Sub-section (2), the Government of Nepal shall make necessary inquiries and, if it finds the applicant capable of operating a travel or trekking agency, shall issue a license as prescribed upon payment of the prescribed fee.

(Added by the First Amendment.)

(4) A license issued under Sub-section (3) shall be renewed within the prescribed period upon payment of the prescribed fee. 3A. Classification of Travel or Trekking Agencies: (Added by the Second Amendment.)

(1) The classification of travel or trekking agencies shall be as prescribed.

(2) The Government of Nepal may provide facilities as prescribed to travel or trekking agencies classified under Sub-section (1). 4. Disqualification: A license under Section 3 shall not be granted to the following persons: -

(a) A person not competent to contract under the prevailing law relating to contract,

(b) A person who has been adjudged insolvent,

(c) A person whose license for a travel or trekking agency has been cancelled under Section 9 and who has not completed a period of two years from that date,

(d) A person who has been convicted of a criminal offense involving moral turpitude and sentenced to imprisonment. 5. Travel or Trekking Agency to Notify Charges: (1) A travel or trekking agency licensed under this Act shall notify the Government of Nepal of the rate of charges to be taken from tourists for its services (Amended by the First Amendment.).

(2) The rate of charges notified under Sub-section (1) shall be published and publicized as prescribed by the Government of Nepal. 6. Payment of Bills in Convertible Foreign Currency: (1) While providing services to a tourist, a travel agency or trekking agency licensed under this Act (Amended by the First Amendment.) shall transact in such a manner that bills are paid in convertible foreign currency as prescribed by the Government of Nepal.

(2) All transactions of foreign currency earned within Nepal (Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.) or abroad as per Sub-section (1) shall be conducted through Nepal Rastra Bank.

(Added by the First Amendment.)

(3) The Government of Nepal may check whether transactions have been conducted in accordance with Sub-sections (1) and (2). 7.

Power to Suspend License: (1) The Government of Nepal may suspend the license of a travel or trekking agency for a period not exceeding 6 months in the following circumstances: - (a) If any provision of this Act or the Rules framed under this Act is violated, or (b) If the person becomes disqualified under Clause (b) or (d) of Section 4. (2) Before suspending a license of a person to operate a travel or trekking agency under Sub-section (1), such person shall be given an opportunity to submit his/her defense, and while giving such opportunity, a period of at least fifteen days shall be provided. 7A. Cancellation of License: (Added by the Second Amendment.) If a travel or trekking agency whose license has been suspended under Section 7 again engages in the same type of activity after the expiry of the suspension period, the Government of Nepal may cancel the license of such travel or trekking agency as prescribed. 8. Trekking Agency Operating with Permission to Obtain License: (1) A person who has been operating a trekking agency with permission from the Government of Nepal prior to the commencement of this Act must also submit an application to the Government of Nepal for a license under this Act within the prescribed period, with details as prescribed. (2) The Government of Nepal shall grant a license for the trekking agency to a person who submits an application within the period under Sub-section (1). 9.

Penalty: (Amended by the First Amendment.) (1) If a person opens a travel agency or trekking agency without obtaining a license under this Act, or without opening such an agency transacts or attempts to transact business related thereto, the Government of Nepal may cause such agency or business to be closed and impose a fine of up to twenty thousand rupees (Amended by the Second Amendment.) on such person. (2) If a person engages in activities related to a travel or trekking agency while the license of such travel or trekking agency is suspended under Section 7, the Government of Nepal may impose a fine of up to twenty thousand rupees (Amended by the Second Amendment.) on such person and may also cancel the license of such travel or trekking agency held by that person. (Amended by the First Amendment.) (3) A person who violates Sub-section (1) of Section 6 may be fined by the Government of Nepal up to forty thousand rupees (Amended by the Second Amendment.) for the first offense and, from the second offense onwards, up to eighty thousand rupees (Amended by the Second Amendment.) for each subsequent offense. (4) If a person has been punished three times or more under the prevailing law relating to foreign exchange for violation of Sub-section (2) of Section 6, the Government of Nepal may cancel the license of the travel agency or trekking agency (Amended by the Second Amendment.). (5) A person aggrieved by an order given by the Government of Nepal under this Section may file a complaint with the High Court (Amended by the Second Amendment.) within thirty-five days. Chapter - 3 Provisions Relating to Tourist Standard Hotels, Lodges, Restaurants and Resorts, and Bars 10. Registration as Tourist Standard: (1) If a person wishes to register his/her hotel, lodge, restaurant, resort or bar as a tourist standard, he/she shall submit an application to the Government of Nepal as prescribed. (2) If a hotel, lodge, restaurant, resort or bar sought to be registered under Sub-section (1) meets the prescribed facilities, it shall be registered as a tourist standard, and in the case of a hotel, it shall be registered under the prescribed classification of tourist standard. (3) The fee for registering a hotel, lodge, restaurant, resort or bar under Sub-section (2) shall be as prescribed. 11. Formation of Standard Determination Committee: (1) The Government of Nepal may form a Standard Determination Committee to provide recommendations regarding the registration and classification of hotels, lodges, restaurants, resorts or bars as tourist standard. (2) The Chairperson and members of the Committee under Sub-section (1) shall be as prescribed by the Government of Nepal. 12.

Right to Inspect or Examine: (1) The Government of Nepal may inspect or cause to be inspected hotels,

lodges, restaurants, resorts or bars registered under Section 10, and may examine or cause to be examined the food and drink items used therein. (2) If, upon inspection of a hotel, lodge, restaurant, resort or bar or examination of items used therein under Sub-section (1), it is found not to be of the prescribed standard, the Government of Nepal shall give such hotel, lodge, restaurant, resort or bar a reasonable period to maintain the prescribed standard. (3) If the prescribed standard cannot be maintained even after granting a period under Sub-section (2), the Government of Nepal may, after consulting the Standard Determination Committee under Section 11, suspend the registration of such hotel, lodge, restaurant, resort or bar or assign it an appropriate lower classification. (4) If a hotel, lodge, restaurant, resort or bar whose registration has been suspended or which has been assigned a lower classification under Sub-section (3) succeeds in maintaining its original prescribed standard, the Government of Nepal may register such hotel, lodge, restaurant, resort or bar under its original classification or, if the registration was suspended, revoke the suspension. (5) Notwithstanding anything contained in Sub-section (4), in the case of a hotel, lodge, restaurant, resort or bar which cannot maintain its original prescribed standard within one year from the date of suspension, the Government of Nepal may cancel the registration under Section 10.

13. Publication of Price List: Every hotel, lodge, restaurant, resort or bar registered under Section 10 shall send a notice of its rates or prices to the Government of Nepal and shall also publish and publicize them as prescribed by the Government of Nepal.

14. Restrictions on Hotels, Lodges, Restaurants, Resorts or Bars: (1) A hotel, lodge, restaurant, resort or bar not registered under Section 10 shall not do any of the following: - (a) Use any word or symbol on its signboard, advertisement or business that implies it is a tourist standard hotel, lodge, restaurant, resort or bar, or (b) Directly contact or advertise abroad with any tourist or travel agency for the purpose of arranging accommodation or food for tourists. (2) A hotel registered under any prescribed classification under Section 10 shall not use any word or symbol on its signboard, advertisement or business that implies it is of a higher standard than the one in which it is registered.

14A.

Registration of Tourist Standard Hotels, Lodges, Restaurants, Resorts or Bars in the Province: (Added by the Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075.) (1) Notwithstanding anything contained elsewhere in this Act, the Provincial Government may register such hotels, lodges, restaurants, resorts or bars as the Government of Nepal may, by notification in the Nepal Gazette, specify among those classified under the Rules framed under this Act. (2) The Provincial Government shall also exercise the powers vested in the Government of Nepal regarding the inspection and examination of tourist standard hotels, lodges, restaurants, resorts or bars registered under Sub-section (1).

15. Penalty: (1) If a hotel, lodge, restaurant, resort or bar is operated claiming to be of tourist standard without registration under Section 10, or if any word or symbol is used in violation of Sub-section (1) of Section 14, or if contact with a tourist is made, the Government of Nepal may impose a fine of up to ten thousand rupees (Amended by the Second Amendment.) for the first offense, from ten thousand to thirty thousand rupees (Amended by the Second Amendment.) for the second offense, and from thirty thousand to fifty thousand rupees (Amended by the Second Amendment.) for each subsequent offense from the third offense onwards. (2) If any word or symbol is used in violation of Sub-section (2) of Section 14, the Government of Nepal may suspend or cancel the registration of such hotel. (3) If a person obstructs or opposes an employee deputed by the Government of Nepal under Section 12 from inspecting a hotel, lodge, restaurant, resort or bar or examining the food and drink items used therein, the Government of Nepal may impose a fine of up to ten thousand rupees (Amended by the Second Amendment.) on such person. (4) A person aggrieved by an order given by the Government of Nepal under Sub-section (1), (2) or (3) may file a complaint with the High Court (Amended by the Some Nepal Acts Amendment Act, 2072.) within thirty-five days.

Chapter - 4 Provisions Relating to Mountaineering

16. Prohibition on Climbing Mountain Peaks without Permission: A

mountaineering team shall not climb any mountain peak without obtaining permission under this Act. 17.

Permission Required for Mountaineering: (1) A mountaineering team wishing to climb any mountain peak in Nepal (Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.) opened by the Government of Nepal for mountaineering shall submit an application to the Government of Nepal as prescribed. (2) Upon receipt of an application under Sub-section (1), the Government of Nepal may, after making necessary inquiries and if it deems appropriate, issue permission as prescribed. (3) The conditions to be observed by a mountaineering team obtaining permission for mountaineering shall be as prescribed. 18. **Royalty to be Paid for Mountaineering:** (1) A mountaineering team obtaining permission to climb under Section 17 shall pay the prescribed royalty amount for the mountain peak of the prescribed height in convertible foreign currency. (Added by the First Amendment.) Provided that, the royalty amount payable by the Nepali side in a Nepali mountaineering team or a joint Nepali and foreign mountaineering team may be paid in Nepali currency. (2) The royalty amount paid by one mountaineering team shall not be transferable to another mountaineering team. 19. **Route for Mountaineering:** (1) A mountaineering team must climb only by the route specified in the permission issued by the Government of Nepal for mountaineering. (2) If it becomes necessary to change the mountaineering route due to natural or other reasons, prior approval from the Government of Nepal must be obtained. Provided that, if the route has to be changed due to an emergency, the reason therefor shall be communicated to the Government of Nepal as soon as possible through the Liaison Officer. 20. **Liaison Officer:** (1) A mountaineering team obtaining permission for mountaineering must take with it the number of Liaison Officers deputed by the Government of Nepal while going for mountaineering. (Added by the First Amendment.) Provided that the Government of Nepal may specify mountain peaks for which taking a Liaison Officer is not required. (2) The mountaineering team concerned shall provide the Liaison Officer deputed to accompany it under Sub-section (1) with facilities as prescribed from the date of departure for the mountaineering expedition until the completion of the mountaineering and return to Kathmandu or other place prescribed by the Government of Nepal. (3) The duties, functions and powers of a Liaison Officer shall be as prescribed. 21. **Provisions Relating to Sirdar, Mountain Guide, Base Camp Workers, etc.:** (1) While departing for mountaineering, a mountaineering team may take with it Sirdars, Mountain Guides, Base Camp workers, High Altitude workers and Local workers as required.

While taking them, the mountaineering team must take such persons with a commitment to provide them facilities as prescribed from the date of departure until the completion of mountaineering and return to Kathmandu or other place prescribed by the Government of Nepal. (Added by the First Amendment.) Provided that the mountaineering team must take workers as prescribed. (2) Even after departure for mountaineering, if necessary on the way, Base Camp workers, High Altitude workers or Local workers may be taken along. (3) The duties, functions and powers of Sirdars, Mountain Guides, Base Camp workers, High Altitude workers and Local workers shall be as prescribed. 22. **To be Nepali Citizens:** Sirdars, Mountain Guides, High Altitude workers, Base Camp workers and Local workers accompanying a mountaineering team must be Nepali citizens. 23. **Removal from Work:** (1) If the work of any Sirdar, Mountain Guide, High Altitude worker, Base Camp worker or Local worker is not satisfactory, the leader of the mountaineering team may, after consulting the Liaison Officer, remove such person from work. (Added by the First Amendment.) (1A) If a person is removed from work before the completion of mountaineering activities under Sub-section (1), such person shall return to the mountaineering team the items of facilities received, except for clothes, shoes, etc. that have been used on his/her body. (2) The mountaineering team concerned shall bear the expenses for the person removed under Sub-section (1) to return to the place from where he/she was hired. 24. **Medical Examination Required:** (1) Before departing for mountaineering, the mountaineering team must cause the medical examination of its team members, Liaison Officer, Sirdar, Mountain Guide, High Altitude

workers, Base Camp workers and Local workers. (2) A person whose health is not found to be in satisfactory condition upon medical examination under Sub-section (1) shall not be taken along. 25. Personal Accident Insurance to be Obtained: (1) The mountaineering team shall, at its own expense, obtain personal accident insurance for the prescribed amount with a prescribed insurer for the Liaison Officer, Sirdar, Mountain Guide, Base Camp workers and High Altitude workers before engaging them in work.

Provided that obtaining personal accident insurance for Local workers shall not be mandatory. (2) If a person required to be insured under Sub-section (1) is taken on the way, or if such person dies or is injured in an accident while engaged in work before insurance could be obtained for any reason, the mountaineering team concerned shall pay as compensation to such person or his/her representative the amount equivalent to whatever amount he/she would have received had personal accident insurance been obtained. (3) If a Local worker dies or is injured in an accident while engaged in work and no personal accident insurance has been obtained for him/her, the mountaineering team concerned shall pay compensation to him/her or his/her representative under Sub-section (2). Explanation: For the purposes of this Chapter, (a) "Accident" includes diseases arising from snow or altitude. (b) "While engaged in work" means from the date and place of agreement, contract or appointment for engagement in work until the date of completion of work and return to the same place. 26. Appointment of Representative: (1) The mountaineering team shall appoint its representative to handle matters that may arise in Kathmandu during the period it is engaged in mountaineering and shall inform the Government of Nepal thereof. (2) While appointing a representative under Sub-section (1), a foreign or joint mountaineering team, other than a Nepali mountaineering team, must appoint a trekking agency licensed under this Act or an institution that makes mountaineering arrangements (Added by the First Amendment.). (Added by the First Amendment.) (3) The duties of a representative appointed under Sub-section (1) shall be as prescribed. 27. Bringing of Mountaineering Equipment and Other Goods: (1) A mountaineering team that has obtained permission under Section 17 shall bring into Nepal (Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.) only the necessary quantity of equipment and other goods related to its expedition, after obtaining prior approval from the Government of Nepal. (2) If a mountaineering team brings any equipment or other goods by concealing them without informing the Government of Nepal, the Government of Nepal may confiscate such equipment or goods. 28.

Submission of Mountaineering Reports: (1) The leader of the mountaineering team, or a member acting on his/her behalf, shall send periodic reports during the mountaineering period through the Liaison Officer (Added by the First Amendment.) or, if there is no Liaison Officer, directly as prescribed. (2) After the completion of its mountaineering activities, the leader of the mountaineering team shall submit a report to the Government of Nepal within the prescribed period and as prescribed. 29. Emergency Rescue Operations: (1) If emergency rescue is required for the Liaison Officer, Sirdar, Mountain Guide (Amended by the First Amendment.), High Altitude worker, Base Camp worker, Local worker or mountaineer accompanying the mountaineering team, rescue operations may be carried out through the representative under Section 26 or through any institution that has come forward for rescue operations. (2) The mountaineering team concerned shall bear all expenses incurred in carrying out rescue operations under Sub-section (1). (Added by the First Amendment.) 29A. Information to be Given: (1) If any member of the mountaineering team, Liaison Officer, Sirdar, Mountain Guide, High Altitude worker, Base Camp worker or Local worker meets with an accident, or dies or goes missing due to an accident or any other cause in the course of mountaineering, a report with full details thereof shall be submitted to the Government of Nepal by the Liaison Officer accompanying the mountaineering team or by the leader or any member of the mountaineering team. (2) On the basis of a report received under Sub-section (1), the Government of Nepal may formally inform the concerned person or

body that a person is dead or missing. 30. Keeping the Environment Clean: (1) A mountaineering team must comply with the prescribed conditions to prevent environmental pollution while mountaineering. (2) If any loss or damage is caused to any person's life or body or to any government or non-government property due to non-compliance with the prescribed conditions under Sub-section (1), the mountaineering team concerned shall pay compensation as determined by the Government of Nepal, and if such team does not pay, the recommending institution shall pay. (Added by the Second Amendment.) 30A.

Deposit Amount for Waste Management: (1) The Government of Nepal may take a deposit amount as prescribed for waste management from mountaineering teams going to climb mountain peaks as prescribed.

(2) After the mountaineering team concerned completes its climbing activities and brings back the prescribed items taken with it and delivers them to the place prescribed by the Government of Nepal, the deposit amount kept under Sub-section (1) shall be refunded to the mountaineering team concerned as prescribed.

(3) If the mountaineering team concerned does not deliver the prescribed items under Sub-section (2) to the prescribed place, the deposit amount kept under Sub-section (1) by such mountaineering team shall be forfeited and arrangements shall be made to deliver such items to the relevant place. 31. Publication of

Mountaineering News: A mountaineering team shall not publish any news relating to mountaineering elsewhere without informing the Government of Nepal while the mountaineering is ongoing. 32. Liability and

Responsibility of the Mountaineering Team Leader: (1) The primary responsibility for ensuring compliance with this Act, the Rules framed under this Act and the conditions specified in the mountaineering permission shall lie with the leader of the mountaineering team.

(2) Other duties of the leader of the mountaineering team, besides those mentioned in Sub-section (1), shall be as prescribed. 33. Permission may be Cancelled or Prohibited: (1) If the leader or any member of the mountaineering team violates any provision of this Act, the Rules framed under this Act or any condition specified in the mountaineering permission, the Government of Nepal may, at any time, cancel the permission granted under this Act.

(2) If the mountaineering permission issued under this Act needs to be cancelled due to any special circumstances, the Government of Nepal may cancel such permission at any time, with or without stating reasons. 34. Abandonment of Mountaineering: A mountaineering team may abandon its mountaineering

expedition at any time. 35. Circumstances Where Royalty Amount is Not Refundable: If the permission is cancelled under Sub-section (1) of Section 33 or if the expedition is abandoned under Section 34, the royalty

amount paid by such mountaineering team shall not be refunded. 36. Concessions may be Granted to

Mountaineering Teams: Notwithstanding anything contained elsewhere in this Act, the Government of Nepal may grant concessions or facilities as prescribed to a Nepali mountaineering team or a prescribed mountaineering team, or to a foreign mountaineering team that includes Nepali citizens as members. 37.

38. Penalty: (1) The Government of Nepal may impose a ban prohibiting a mountaineering team or any of its members from entering Nepal (Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.) for up to five years or from mountaineering in Nepal (Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.) for up to ten years for doing any of the following: -

- (a) Climbing or attempting to climb any mountain peak without permission,
- (b) Climbing or attempting to climb any mountain peak not opened for mountaineering,
- (c) Engaging in any kind of immoral conduct or behavior during the mountaineering period,
- (d) Failing to submit prescribed items to the Government of Nepal within the prescribed period after the

completion of mountaineering,
(e) Failing to comply with the prescribed conditions to prevent environmental pollution,
(f) Violating this Act or the Rules framed under this Act or the conditions specified in the mountaineering permission.

(2) If a mountaineering team or its member climbs any mountain peak without obtaining permission, and the Government of Nepal deems it appropriate, instead of taking action under Sub-section (1), it may impose a fine equal to double the amount of fee payable under this Act for obtaining permission to climb such peak.

(3) If a mountaineering team or its member climbs any mountain peak not opened for climbing, and the Government of Nepal deems it appropriate, instead of taking action under Sub-section (1), it may impose a fine of up to three times the royalty amount payable for climbing the highest mountain peak open for climbing (Amended by the First Amendment.).

(4) If an institution making mountaineering arrangements violates any mountaineering-related provision of this Act or the Rules framed under this Act (Added by the First Amendment.) or abets any person to violate the same, the Government of Nepal may prohibit such institution from making any kind of mountaineering arrangements for a period of one to five years (Amended by the First Amendment.) or impose a fine of ten thousand to fifty thousand rupees (Amended by the Second Amendment.), or both.

(5) If a mountaineering team fails to comply with the prescribed conditions to prevent environmental pollution, and the Government of Nepal deems it appropriate, instead of taking action under Sub-section (1), it may impose a fine of up to fifty thousand rupees (Added by the First Amendment.).

(6) If a Mountaineering Association fails to comply with the order or direction given by the Government of Nepal under Sub-section (4) of Section 37, the Government of Nepal may withdraw the power entrusted under Sub-section (2) of Section 37 or cancel the recognition granted for the purpose of mountaineering.

(Added by the First Amendment.)

(7) If a person abets a mountaineering team or any of its members to violate this Act or the Rules framed under this Act or the orders or directions of the Government of Nepal, the prescribed authority may impose a fine of one thousand to ten thousand rupees (Added by the First Amendment.).

(Added by the First Amendment.)

(8) A person aggrieved by an order given by the prescribed authority under Sub-section (7) may file a complaint with the Government of Nepal

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Power to Form Committee: For the purpose of providing advice and suggestions to the Government of Nepal on tourism development work, the Government of Nepal may form a Tourism Development Committee consisting of governmental and non-governmental persons.

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amendment. tourism business under Section 45A., operated by the Government of Nepal, or in relation to a guide appointed by the Government of Nepal.

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56. Power to Make Rules: The Government of Nepal may make rules to implement the objectives of this Act.

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???????? ? 57. Repeal and Saving: (1) The Tourism Industry Act, 2021 is hereby repealed.

(2) A license obtained by a Travel Agency and a Guide under the Tourism Industry Act, 2021 shall be deemed to have been obtained under this Act.

(3) A hotel registered as a tourist class hotel under the Tourism Industry Act, 2021 shall be deemed to be registered under this Act.